

CYPRUS REPUBLIC

File No.: 11.17.001.008.228

OFFICE OF THE COMMISSIONER FOR PERSONAL DATA PROTECTION

DECISION

Complaint regarding personal data breach

Based on the duties and powers conferred upon me by Article 57(1)(f) of the Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter referred to as the "Regulation"), I have examined a complaint submitted to my Office, pursuant to Article 77(1) of the Regulation, against the Cyprus News Agency (hereinafter referred to as the "Respondent" or "the Agency"), as well as against the company Google LLC. The complaint was submitted to the Austrian Data Protection Authority on August 17, 2020, by a resident of Austria (hereinafter referred to as the "complainant"), who is represented, pursuant to Article 80(1) of the Regulation, by the non-profit organization noyb – European Centre for Digital Rights.

Based on the investigation, I found a violation of the Regulation by the Respondent and, therefore, I issue this Decision.

A.

2. In the complaint, it is stated, among other things, that:

- 2.1. the complainant, on August 14, 2020, at 10:42 a.m., visited the website <http://www.cna.org.cy> (hereinafter referred to as the "website"), while logged in with his email address to a Google account,
- 2.2. the Respondent has integrated the HTML code for Google Services (including Google Analytics),
- 2.3. during the complainant's visit to the website, the Respondent processed his personal data (at least the IP address and cookie data), of which at least some were transmitted to Google.
- 2.4. the use of Google Analytics is subject to the Terms of Service of Google Analytics and the Data Processing Terms of Google Ads, which have been updated, effective from August 12, 2020 (New Data Processing Terms of Google Ads),
- 2.5. according to the Terms of Service of Google Analytics, Google LLC (1600 Amphitheatre Parkway Mountain View, CA 94043, USA) is the contracting partner of the data controller. According to point 5.1.1(b) of the Data Processing Terms of Google Ads and the New Data Processing Terms of Google Ads, Google LLC processes personal data on behalf of the data controller and meets the requirements as a data processor, according to Article 4(8) of the Regulation,
- 2.6. according to point 10 of the Data Processing Terms of Google Ads, the data controller has agreed that Google may store and process personal data (in this case, of the complainant) "[...] in the USA or any other country in which Google or any of its Subprocessors maintain facilities." The transfer of the complainant's personal data by the data controller (a company based in the EEA) to Google LLC or its subprocessors in the USA (or any other country outside the EEA) requires a legal basis according to Articles 44 and subsequent articles of the Regulation,
- 2.7. since the CJEU has invalidated the "EU-U.S. Privacy Shield" in decision C-311/18, the data controller can no longer base the transfer of data to Google LLC in the USA on an adequacy decision, pursuant to Article 45 of the Regulation. However, the data controller and Google LLC continued to rely on the invalidated "EU-U.S. Privacy Shield" for nearly four weeks after the decision, as evidenced by point 10.2 of the Data Processing Terms of Google Ads,
- 2.8. the data controller cannot also base the data transfer on standard contractual clauses, according to Article 46(2)(c) and (d) of the Regulation, if the third country does not ensure adequate protection of personal data transferred under those clauses, according to EU law. The CJEU explicitly found that further transfer to companies subject to 50 U.S. Code § 1881a not only violates the relevant articles of Chapter V of the Regulation but also Articles 7 and 8 of the Charter of Fundamental Rights of the EU,

as well as the essence of Article 47 of the Charter (C-362/14 (“Schrems I”), para. 95). Therefore, any further transfer violates the fundamental right to privacy, data protection, and the right to effective judicial protection and to a fair trial,

2.9. Google LLC qualifies as a provider of electronic communications services within the meaning of 50 U.S. Code § 1881(b)(4) and, therefore, is subject to U.S. information surveillance, pursuant to 50 U.S. Code § 1881a (“FISA 702”). As evidenced by the “Snowden Revelations” and the...

****Google Transparency Report****

LLC (<https://transparencyreport.google.com/userdata/us-national-security>), Google LLC actively provides personal data to the U.S. government, pursuant to 50 U.S. Code § 1881a,

****2.10.**** Consequently, the data controller is unable to ensure adequate protection of the personal data of the complainant transferred to Google LLC. However, since August 12, 2020, the data controller and Google LLC have attempted to rely on standard contractual clauses for the transfer of data to the U.S., as evidenced by point 10.2 of the New Google Ads Data Processing Terms,

****2.11.**** This practice completely disregards paragraphs 134 and 135 of the aforementioned ruling of the CJEU, which imposes a legal obligation on the data controller to refrain from transferring the complainant's data, or others, to Google LLC in the U.S. However, for more than a month after the ruling, the data controller has not acted in accordance with the decision,

****2.12.**** Accordingly, Google LLC continues to accept data transfers from the EU/EEA, based on standard contractual clauses, despite the clear ruling of the CJEU and in violation of Articles 44 to 49 of the Regulation. Google LLC further discloses personal data from the EU/EEA to the U.S. government in violation of Article 48 of the Regulation. In many public statements, Google has acknowledged that it has not changed this practice: “The Privacy Shield frameworks provided a mechanism to comply with data protection requirements when transferring EEA, UK or Swiss personal data to the United States and onwards. While the Swiss-U.S. Privacy Shield currently remains valid, in light of the recent Court of Justice of the European Union ruling on data transfers, invalidating the EU-U.S. Privacy Shield, Google will be moving to reliance on Standard Contractual Clauses for relevant data transfers, which, as per the ruling, can continue to be a valid legal mechanism to transfer data under the GDPR. We are committed to having a lawful basis for data transfers in compliance with applicable data protection laws.”,

****2.13.**** Pursuant to Articles 58 and 83 of the Regulation, the competent Supervisory Authority may exercise corrective powers and sanctioning powers, both against the data controller and the processor, namely Google LLC,

****2.14.**** According to the aforementioned ruling of the CJEU, the competent Supervisory Authority must suspend or terminate the transfer of personal data to the third country, pursuant to Article 58(2)(f) and (i) of the Regulation,

****2.15.**** The complainant requests that:

****2.15.1.**** The complaint be fully investigated, pursuant to Article 58(1) of the Regulation, and clarify:

(a) To the U.S. or any other third country or international organization, on what transfer mechanism the data controller based the data transfer,

(b)

(c) Whether the provisions of the Google Analytics Terms of Service and the (New) Google Ads Data Processing Terms, at the time of submitting the complaint, met the requirements of Article 28 of the Regulation regarding the transfer of personal data to third countries,

****2.15.2.**** An immediate prohibition or suspension of any data transfer from the data controller to Google LLC in the U.S. be imposed, and the return of the data to the EU/EEA or another country providing adequate protection be ordered, pursuant to Article 58(2)(d), (f) and (i) of the Regulation,

What personal data was transferred from the data controller to Google LLC in the

****3****

Positions of the Data Controller

The data controller, in letters dated January 12, 2021, February 15, 2021, states that the complainant is likely only one of thousands of users (Article 83(2)(a) confirms that there is code for Google Analytics on the website, and each

****2.15.3.**** An effective, proportionate, and deterrent fine be imposed against the data controller and Google LLC, pursuant to Article 83(5)(c) of the Regulation, taking into account that:

(a)

(b) At the time of submitting the complaint, more than one month had passed since the C-311/18 ruling of the CJEU and the data controller had not taken any measures to bring the processing operations into compliance with the provisions of the Regulation (Article 83(2)(b) of the Regulation).

Where reference is made above to the data controller, it is understood to mean the data controller.

****3.****

In the context of investigating the complaint, my Office sent letters to the data controller with clarifying questions on December 23, 2020, January 14, 2021, and June 10, 2022.

4.

On July 18, 2022, it was stated among other things:

4.1.

The website's language has its own code,

4.2. The Respondent does not maintain access to any information or data collected by Google Analytics,

4.3. The Respondent does not have facilities in European member states,

4.4. The reasons for integration are purely statistical, to record the website's traffic and consequently its improvement and upgrading,

4.5. There is no other version of the website in another European country. Therefore, the statistical data obtained did not concern data subjects in more than one member state,

4.6. There is no possibility of data transfer to the USA,

4.7. The only use made is for extracting the website's traffic. No data is disclosed by the Respondent to anyone. No data has ever been disclosed, which the Respondent does not receive. A traffic report was delivered only to the company XXX in March 2020,

No processing is done or has been done by the Respondent. Furthermore, there is no

4.8.

possibility of data categorization, since such data is not processed.

4.9. The code for the tool's website is free, and the data obtained concerns only traffic. No data is obtained or undergoes any processing, either by the Respondent or by any other person,

4.10. The Respondent is not a data processor, and therefore there is no specific time for data storage. Also, no data is collected or stored,

4.11. The Respondent is based and operates only in Cyprus. Therefore, it does not process personal data in other countries,

4.12. Regarding the legal basis for the integration of Google Analytics and the subsequent processing of personal data, including any disclosure to recipients (particularly to Google), it was stated that the integration is available for free and there is no legal basis on which the integration on the website is based,

4.13. There is no legal or other contractual relationship with Google. Google is an "independent (data processor),"

4.14. No personal data is provided to recipients,

4.15. There is no relationship between the data controller and the data processor,

4.16. Regarding the terms of use of Google, which apply to Google Analytics and the terms of data processing that were to be updated on August 31, 2020, the Respondent stated that there is no available data required as there is no way of identification or tracking,

4.17. The only settings available in Google Analytics are the general overview of traffic, audience review, and the language of visitors,

4.18. Regarding the decision of the European Court, case C-311/18, which ruled on July 16, 2020, that the "EU-U.S. Privacy Shield" (Executive Decision (EU) 2016/1250 of the Commission, dated July 12, 2016) is invalid, it was stated that this decision, both interim and final, does not apply to the Respondent, as no data is transmitted,

4.19. It is the position of the Respondent that no data is transmitted to third countries by it.

B.

According to Article 4 of the Regulation, personal data

5.
is interpreted as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person."

Legal Framework

6.
As the data controller, Article 4 of the Regulation defines "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

7.
As the processor, Article 4 of the Regulation defines "the natural or legal person, public authority, agency, or other body which processes personal data on behalf of the controller."

8.
Article 5 of the Regulation provides the following:

Regarding the principles governing the processing of personal data, the ("data minimization") means that personal data shall be adequate, relevant, and limited to what is necessary for the purposes of the processing.

Personal data:

1.

- α) They are processed in a lawful and legitimate manner in a transparent way in relation to the data subject ("lawfulness, fairness, and transparency"),
- β) They are collected for specified, explicit, and legitimate purposes and are not further processed in a manner incompatible with those purposes; further processing for archiving purposes in the public interest or for scientific or historical research purposes or for statistical purposes is not considered incompatible with the initial purposes according to Article 89 paragraph 1 ("purpose limitation"),
- γ) For data, they are accurate and, when necessary, kept up to date; all reasonable measures must be taken to ensure the immediate deletion or correction of personal data which are inaccurate, in relation to the purposes of processing ("accuracy"),
- δ) They are kept in a form which permits identification of data subjects only for as long as is necessary for the purposes of processing personal data; personal data may be stored for longer periods, provided that the personal data will be processed only for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89 paragraph 1

and provided that appropriate technical and organizational measures required by this regulation are applied to ensure the rights and freedoms of the data subject ("storage limitation"),
στ) They are processed in a manner that ensures the appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ("integrity and confidentiality").

****2.**** Compliance with paragraph 1 ("accountability"). The data controller bears the responsibility and is in a position to demonstrate

****6****

****9.****

Pursuant to Article 44 of the Regulation, it is provided that:

"Any transfer of personal data which are processed or are intended to be processed after their transfer to a third country or international organization shall take place only if, subject to the other provisions of this regulation, the conditions laid down in this chapter are fulfilled by the data controller and the processor, including for further transfers of personal data from the third country or international organization to another third country or another international organization. All provisions of this chapter apply in order to ensure that the level of protection of natural persons guaranteed by this regulation is not undermined."

****10.**** Pursuant to Article 57, paragraph 1, point (f) of the Regulation, the Commissioner for Personal Data Protection has the duty to:

"handle complaints lodged by the data subject or by a body or organization or association in accordance with Article 80 and investigate, to the extent appropriate, the subject matter of the complaint and inform the complainant of the progress and outcome of the investigation within a reasonable period, particularly if further investigation or coordination with another supervisory authority is required."

****11.**** Regarding the submission of a complaint to the Supervisory Authority, Article 77 of the Regulation provides that:

"Subject to any other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority, in particular in the Member State of their habitual residence or place of work or the place of the alleged infringement, if the data subject considers that the processing of personal data concerning them infringes this regulation."

****12.**** Pursuant to Article 58, paragraph 2, of the Regulation, the Commissioner for Personal Data Protection has the following corrective powers:

to issue warnings to the data controller or the

****α)**** processor that intended processing operations are likely to infringe provisions of this regulation,

****β)**** to issue reprimands to the data controller or the processor when processing operations have infringed provisions of this regulation,

****γ)**** to order the data controller or the processor to comply with the requests of the data subject to exercise their rights under this regulation,

****δ)**** to order the data controller or the processor to bring processing operations into compliance with the provisions of this regulation, if necessary, in a specific manner and within a specified time limit,

****ε)**** to order the data controller to notify the data subject of a personal data breach,

to impose a temporary or permanent restriction, including

the

(st)

prohibition of processing,

(z)

to order the correction or deletion of personal data

or restriction of processing pursuant to

Articles 16, 17, and 18 and order

notification of these actions to recipients
to whom the personal data
were disclosed pursuant to
Article 17 paragraph 2
and Article 19,
to withdraw the certification or to order the
certification body to

(e)

withdraw a certificate issued in accordance with
Articles 42 and 43 or to order
the certification body not to issue
certification, if the certification
requirements are not met or are no longer met,

(th)

to impose an administrative fine pursuant to Article
83, in addition to or instead of
the measures mentioned in this paragraph,
depending on the circumstances
of each individual case,

(i)

third country or to an international organization.”
to order the suspension of data
flow to a recipient in

Regarding the general terms of
imposing administrative fines, in Article 83,

13.

paragraph 2, the Regulation provides the following:

“2.

Administrative fines, depending on the
circumstances of each individual
case, are imposed in addition to or instead of
the measures referred to in
Article 58 paragraph 2 points (a) to (h) and
in Article 58 paragraph 2
point (i). In deciding on the
imposition of an administrative fine,
as well as regarding the amount of the administrative
fine for each individual
case, the following shall be duly taken into account:

(a)

the nature, gravity, and duration of the infringement,
taking into account the
nature, scope, or purpose of the relevant
processing, as well as the number of
data subjects affected by the infringement
and the degree of damage
suffered,

the intent or negligence that caused the infringement,

(b)

(c)

any actions taken by the data controller or the

processor to mitigate the damage suffered by the data subjects,

(d)

the degree of responsibility of the data controller or the processor, taking into account the technical and organizational measures implemented pursuant to Articles 25 and 32,

(e)

of the processor,

(f)

the infringement and the limitation of its potential adverse effects,

(g)

infringement,

(h)

the manner in which the supervisory authority was informed of the infringement,

in particular whether and to what extent the data controller or the processor notified the infringement,

in cases where measures were previously ordered to be taken

(i)

referred to in Article 58 paragraph 2 against the involved data controller

or the processor regarding the same subject, the compliance with those measures,

the categories of personal data affected by any relevant previous infringements of the data controller or

the degree of cooperation with the supervisory authority for the rectification of the

8

compliance with approved codes of conduct in accordance with Article 40 or

(j)

approved certification mechanisms in accordance with Article 42 and

(k)

any other aggravating or mitigating factor arising from the circumstances of the specific case, such as the economic benefits gained or losses avoided, directly or indirectly, from the infringement.

3.

In cases where the data controller or the processor, for the same or for related processing operations, violates several provisions of this regulation, the total amount of the administrative fine shall not exceed the amount specified for the most serious

infringement.

4.

Violations of the following provisions shall incur, according to paragraph 2, administrative fines of up to 10,000,000 EUR or, in the case of enterprises, up to 2% of the total worldwide annual turnover of the previous financial year, depending on which is higher:

(a)

the obligations of the data controller and the processor according to Articles 8, 11, 25 to 39 and 42 and 43,

(b)

the obligations of the certification body according to Articles 42 and 43,

(c)

the obligations of the monitoring body according to Article 41 paragraph 4.

5.

Violations of the following provisions shall incur, according to paragraph 2, administrative fines of up to 20,000,000 EUR or, in the case of enterprises, up to 4% of the total worldwide annual turnover of the previous financial year, depending on which is higher:

(a)

apply for the approval, according to Articles 5, 6, 7 and 9,

(b)

up to 22,

(c)

or to an international organization according to Articles 44 to 49,

(d)

which are established under Chapter IX,

(e)

non-compliance with an order or with a temporary or permanent restriction of

processing or with the suspension of data

flow imposed by the

supervisory authority pursuant to Article 58 paragraph

2 or failure to provide access

in violation of Article 58 paragraph 1.”

the transfer of personal data to

a recipient in a third country

the basic principles for processing,

including the conditions that

****The rights of data subjects****

****according to Articles 12****

****any obligations under the law****

****of the Member State****

****Recital****

****G.****

14. Based on the information provided by the complainant, it appears that the subject of the complaint is the potential transfer of the complainant's data and whether there was an adequate level of protection for their data, as provided for in Article 44 of the Regulation, due to the integration of the Google Analytics tool (hereinafter referred to as the "tool") on the website. In this context, it should also be investigated whether Google LLC has an obligation to comply with Article 44 of the Regulation.

15. At this point, I note that any further processing is not examined in this Decision.

16. The entity in question is a legal person under public law, and its operation is governed by the Law on the Cyprus News Agency. The mission of the entity is to inform the public on a wide range of issues, as a public information service. The entity broadcasts in Turkish as well. Considering the subject matter of the content of the website, it appears that the website targets individuals located in Cyprus. Furthermore, the entity is based and operates only in Cyprus and not in any other Member State.

17. The Google Analytics tool is a measurement service that allows website owners to measure, among other things, traffic characteristics. This includes measuring the traffic of visitors who visit a specific website. In this way, it becomes possible to understand the behavior of the website's visitors and how they interact with a specific website. Specifically, a website owner can create a Google Analytics account and view reports related to the website using a dashboard. Google Analytics can also measure and optimize the effectiveness of advertising campaigns conducted by website owners on Google advertising services.

18. It is not known when the tool was installed on the website. However, considering that, as the entity mentioned, a traffic report was delivered to the company XXX in March 2020, it appears that the tool had been installed by at least March 2020.

19. The entity decided to integrate the tool on <http://www.cna.org.cy>, so as to, as it stated, draw traffic to the website. Moreover, the entity mentioned that the reasons for integration are purely statistical, to record the traffic of the website and consequently its improvement and upgrading. Therefore, due to its own decision, the code of the tool, which was provided to it by Google LLC, was installed.

20. Based on the above decision of the entity, I find that the entity is the data controller for this specific processing, as it has determined the purposes and means of the processing.

21. Therefore, the position of the entity that it is not the data controller does not hold. Due to its own decision to integrate the tool, there was processing of the complainant's personal data. Even if it were true that no processing is or was carried out by the entity, any processing that occurs arose due to the decision of the entity itself.

22. Consequently, as the data controller, it was obliged to take all measures so that the level of protection of the personal data it processes is not undermined, or when it assigns processing to a processor.

****In the tool on****

10. In point 10 of the Data Processing Terms of Google Ads (dated January 1, 2020) and in point 5.1.1(b) of the Data Processing Terms of Google Ads (dated January 1, 2020) and the New Data Processing Terms of Google Ads (dated August 12, 2020), it is stated:

"(b) Google is a processor of Customer Personal Data under the European Data Protection Legislation."

24. It is stated that:

"Data Storage and Processing Facilities. Customer agrees that Google may, subject to Section 10.2

(Transfers of Data), store and process Customer Personal Data in the United States of America and any other country in which Google or any of its Subprocessors maintains facilities.”

24.1. Also, in point 10 of the New Data Processing Terms of Google Ads (dated August 12, 2020), it is stated:

“Data Storage and Processing Facilities. Customer agrees that Google may, subject to Section 10.2 (Transfers of Data), store and process Customer Personal Data in any country in which Google or any of its Subprocessors maintains facilities.”

25. Therefore, there is an acknowledgment from Google LLC regarding the relationship it has with the entity concerning the processing of the personal data of the visitors of the website. Based on this relationship, data processing is assigned to Google LLC.

on behalf of the data controller, which may take place in any country where Google LLC or its subprocessors have facilities.

26. Therefore, the position of the Respondent that there is no legal or other contractual relationship with Google LLC and that there is no relationship of data controller - processor is not valid.

27. As the complainant stated, on August 14, 2020, at 10:42 a.m., he visited the website while logged in with his email address to a Google account. The har file submitted by the complainant to my Office contains information about the communication between the web server and the complainant - visitor, as well as information regarding cookies used during navigation. It has also been revealed that there was data sharing, via cookies, from services provided by Google, for marketing and analytics purposes.

28. The cookies `_ga` and `_gid` are also included, which are stored on the device of the user - visitor of a website. In these cookies, unique user identification numbers are processed. The unique numbers allow for the distinction of visitors to a website and whether the visitors have previously visited that specific website or not. The distinction of visitors to a website is possible solely through the use of these identification numbers.

29. Based on the above, it is evident that there has been processing of personal data of the complainant. There has been processing, including the transmission, of the unique user identification numbers and his IP address.

30. Therefore, the position of the Respondent that no processing is taking place or has taken place and that no data is being received by the Respondent or by any other person is not valid. Nor is the position that no data is collected and stored.

31. According to the Regulation, "processing is lawful only if and to the extent that at least one" of the conditions referred to in Article 6 thereof applies. Therefore, since there has been processing of personal data, there should also be a relevant legal basis for processing, which, however, the Respondent not only did not indicate to my Office but also stated that there is no legal basis for the integration of the tool.

32. Since the tool is integrated into the website, Google LLC has the technical ability to receive information that a specific Google account user has visited this website, provided that the user is logged into his Google account.

33. In the decision of the European Data Protection Supervisor, dated January 5, 2022, against the European Parliament, regarding the use of Google Analytics, it is stated that cookies that make the user identifiable constitute personal data, regardless of whether the user's identity is unknown or has been deleted after collection. It is also mentioned that all data containing identifiers that can be used for the identification/separation of users are considered personal data and should be handled and protected as such. Although the European Data Protection Supervisor is responsible for the enforcement of Regulation (EU) 2018/1725, a relevant interpretation can also be applied in the present case.

34. According to the case law of the CJEU, specifically based on the judgment of the Court of June 17,

2021, C-597/19, and the judgment of the Court of October 19, 2016, C-582/14, it is evident that the IP address constitutes personal data under Article 4 of the Regulation. Furthermore, the IP address does not lose its status as personal data because the means of identification belong to third parties.

35. The combination of unique user identification numbers with other data, such as browsing data or the IP address, can lead to the identification of the user. Therefore, it is evident that the identification of the complainant was possible due to the integration of the tool on the website.

36. In the Guidelines 5/2021 of the European Data Protection Board, regarding the interaction between the application of Article 3 and the provisions for international transfers according to Chapter V of the Regulation, the following three cumulative criteria are provided for the characterization of a processing operation as a transfer: "1) The data controller or the processor ("exporter") is subject to the GDPR for the specific processing. The exporter transmits or makes available in another way personal data that is subject to the said processing to another data controller, joint data controller, or processor ("importer"). In relation to the above, the following arise:

3) The importer is located in a third country, regardless of whether the said importer is subject to the GDPR for the given processing according to Article 3, or is an international organization.

37.

37.1. The respondent is established in Cyprus and is responsible for the operation of the website,

37.2. The respondent disclosed personal data of the complainant due to the installation of the tool on the website, which resulted in their communication to Google LLC in the U.S.,

37.3. Google LLC has a registered office in the U.S.

38. Therefore, it follows that the installation of the tool on the website resulted in the transfer of the complainant's data to the U.S.

39. Google LLC is characterized as a provider of electronic communications services, within the meaning of 50 U.S. Code § 1881(b)(4) and, therefore, is subject to oversight by the U.S. intelligence services according to 50 U.S. Code § 1881a ("FISA 702"), and thus has the obligation to provide personal data to U.S. authorities.

40. Due to the transfer to the U.S., access by U.S. authorities to the personal data of the complainant could occur, a fact that the respondent cannot ascertain. In this case, the respondent is not exempt from their responsibility for the protection of the complainant's personal data. Moreover, the respondent continued to maintain the tool installed on their website, even after the decision of the European Court, case C-311/18, dated July 16, 2020, according to which the "EU-U.S. Privacy Shield" (Commission Implementing Decision (EU) 2016/1250 of July 12, 2016) was deemed invalid.

41. In the case of a transfer, the relevant obligations set out in Chapter V of the Regulation must be observed. Specifically, an adequate level of protection for the transferred data must be provided, as stipulated in Article 44 of the Regulation. Therefore, one of the following conditions must exist:

41.1. An adequacy decision, pursuant to Article 45 of the Regulation,

41.2. Appropriate safeguards, pursuant to Article 46 of the Regulation,

41.3. Derogations for specific situations, pursuant to Article 49 of the Regulation.

42. Due to the aforementioned decision of the European Court, case C-311/18, there was no adequacy decision for the U.S. at the material time.

In this Decision, a more detailed analysis of the legal status of the U.S. (as a third country) is not required, as the CJEU has already addressed this in the aforementioned decision of July 16, 2020. Based on the CJEU's decision, it follows that the EU-U.S. adequacy decision did not provide an adequate level of protection for individuals under the relevant U.S. legislation and the implementation of official surveillance programs, among others under Article 702 of FISA and Executive Order 12333 in conjunction with Presidential Policy Directive 28 (PPD-28).

44. In the aforementioned decision of the CJEU, dated July 16, 2020, it was stated that standard contractual clauses as a transfer tool cannot bind the authorities of the third country. Specifically,

among other things, the following is mentioned:

"125. However, although the aforementioned clauses are binding on the data controller established within the Union and on the recipient of the transfer of personal data who is established in a third country, in the event that they have entered into a contract referring to these clauses, it is undisputed that these clauses do not bind the authorities of the third country, since they are not parties to the contract.

126. Therefore, while there are situations in which, depending on the stage of development of the law and the practices in the relevant third country, the recipient of such a transfer is able to ensure the necessary protection of the data exclusively and solely based on the standard data protection clauses, there are other cases in which the terms contained in these clauses may not constitute an adequate means to ensure, in practice, the effective protection of the personal data transferred to the relevant third country. This occurs, for example, when the law of the third country allows its public authorities to intervene in the exercise of the rights enjoyed by data subjects."

****Relation to this data.****

45. Therefore, the CJEU concluded in its decision that standard contractual clauses cannot provide, for the compliance with the level of protection required by Union law, guarantees that go beyond the contractual obligation. Specifically, the decision explains that:

"133. It thus becomes clear that the standard data protection clauses established by the Commission pursuant to Article 46(2)(c) of the GDPR have the sole purpose of providing contractual guarantees to data controllers or processors established within the Union that are uniformly applicable in all third countries and, therefore, regardless of the level of protection ensured in each of them. To the extent that these standard data protection clauses cannot, by their nature, provide guarantees that go beyond a contractual obligation to ensure compliance with the level of protection required by Union law, it may be necessary, depending on the situation prevailing in a particular third country, for the data controller to take additional measures to ensure compliance with this level of protection."

46. However, the Respondent has not informed my Office of the existence of appropriate guarantees, pursuant to Article 46 of the Regulation, nor of any supplementary measures that were required.

47. Furthermore, the Respondent made no reference to my Office regarding derogations for specific situations, pursuant to Article 49 of the Regulation. In any case, none of the derogations of Article 49 of the Regulation can be invoked as a legal basis. User consent cannot be used for regular repeated transfers (such as the one activated each time the user visits the website), but only as a derogation for specific cases. Moreover, I remind that regarding this decision, the Respondent stated that it does not apply to him, as no data is transferred.

48. Therefore, the Respondent has not demonstrated that, due to the transfer, the level of protection of natural persons guaranteed by the Regulation is not undermined, in violation of Article 44 of the Regulation.

49. Pursuant to Article 5(2) of the Regulation, the data controller bears the responsibility and is able to demonstrate compliance with paragraph 1 ("accountability"). However, based on the positions that the Respondent submitted to my Office, I find that not only has he failed to demonstrate his compliance with Article 5(1) of the Regulation, but he also does not acknowledge the processing that was carried out due to his own decision to integrate the tool.

50. Therefore, I find a violation of Article 5(2) by the Respondent. This finding would hold even if there were no transfer of the complainant's data to the U.S.

51. Beyond the above, it should be examined whether Google LLC is subject, in the present case, to the obligations set out in Chapter V of the Regulation. Based on the Guidelines 5/2021 of the European Data Protection Board, it appears that a transfer exists if "The exporter communicates through a transfer or makes available in another way personal data, which are subject to the said processing, to another data controller, a joint data controller or processor ('importer')." Therefore, the requirements of Chapter V of the Regulation must be adhered to by the data exporter, namely the

Respondent, but not by the data importer, in this case, Google LLC.

52. Therefore, assessing the said transfer, no violation of Article 44 of the Regulation can be established against Google LLC.

****D.****

53. Taking into account all the above elements, as they have been presented, and based on the powers conferred to me pursuant to Article 57(1)(f) of the Regulation, I find that there is a violation by the Respondent:

53.1. of Article 5(2) of Regulation (EU) 2016/679, because he did not demonstrate compliance with paragraph 1 of Article 5 of the Regulation, namely the principle of accountability, and

53.2. of Article 44 of Regulation (EU) 2016/679, because he did not ensure that the level of protection of the complainant guaranteed by the Regulation is not undermined.

54. After considering and weighing:

(a) the provisions of Article 58(2) and Article 83 of the Regulation,

(b) before me based on all existing correspondence, all circumstances and factors that the complainant and the Respondent presented regarding the applicable legislative framework concerning the prescribed administrative sanctions.

****Conclusion****

I find that, under the circumstances, the imposition of an administrative fine is not justified.

Furthermore, due to the new EU-U.S. Data Protection Framework, namely the Executive Decision (EU) 2023/1795 of the Commission dated July 10, 2023, regarding the adequacy of the level of protection of personal data based on the EU-U.S. data protection framework, I find that the imposition of an immediate prohibition or suspension of any data transfer from the Addressee to Google LLC in the U.S. is not justified.

55. Nevertheless, taking into account the aforementioned facts, the legal aspect on which this Decision is based, and the analysis as explained above, and exercising the powers conferred upon me by Article 58(2)(b) of the Regulation,

I have decided

in my discretion and in accordance with the above provisions, to address the Cyprus News Agency:

A reprimand for the violation of Article 5(2) of Regulation (EU) 2016/679,

A reprimand for the violation of Article 44 of Regulation (EU) 2016/679, and

An order that, in the event it continues to use the tool, it ensures that the transfer can be carried out on the basis of the new EU-U.S. Data Protection Framework, Executive Decision (EU) 2023/1795, or on the basis of appropriate safeguards pursuant to Article 46 of the Regulation, and inform me accordingly within one month from the receipt of this Decision.

Peace Loizidou Nikolaidou

Commissioner for the Protection of Personal Data

February 28, 2024